IN THE HON'BLE HIGH COURT OF ORISSA CUTTACK.

(ORIGINAL JURISDICTION CASES).

W.P.(C) No. 10,372/of 2008.

Code No. 019900.

IN THE MATTER OF

An application Under Art. 226 and 227 of the Constitution of India;

A N D

IN THE MATTER OF

An application for direction to the Opp.parties to allow the left out students of Members of Un-recognised Private Secondary Training Schools, Management Association declared by the Govt. as valid genuine institution to appear in the ensuing C.T. Examination 2008 with regular students,

A N D

IN THE MATTER OF

An application seeking direction to the Opp.party No.1 to take a decesion in the matter before notifying the date and Programme of ensuring C.T.Examination 2008 in obedience to the order of this Hon'ble Court passed on in disposed of O.J.C.No.10900/2000 passed in respect of one of the members institution Bagdevi S.T. School,

Cont.....

A N D

IN THE MATTER OF

An application filed by All Orissa Private Secondary Training Schools Management Association represented by its General Secretary Raj Kishore Jena having it's Office at Daliji, P.O.Chandola, Dist:Kendrapara.

..... Petitioner.

-Versus-

1. State of Orissa represented through it's Secretary School & Mass Education Dept. Secretariate Building, Bhubaneswar, Dist:Khurda.

2. Director Secondary Education Orissa, Heads of the Deptt.Building (6th Floor) Bhubaneswar, Dist:Khurda.

3. Secretary Board of Secondary Education, At-Bajrakabati Road, Cuttack, P.O./P.S./Town and Dist:Cuttack.

.... Opp.parties.

The matter out of which this writ application arises was never before this Hon'ble Court in its present form save and except O.J.C. No. 10900/ 2000 disposed of on dt. 20.8.2007. and W.P.(C) No. 1685/2002 disposed of on 28.3.07.

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Par-V
8 Mat. 11.9.08

O. H. C.-98]

S.No. of Order	Date of Order	ORDER WITH SIGNATURE	Office note as to action (if any), taken on Order
		W.P.(C) NO.10372 OF 2008	
12.	24.9.2008	Heard learned counsel for the petitioner and the learned counsel for the State.	

The petitioner is an association of which various private secondary training schools are members. The grievance of the petitioner is that in many of its member institutions students were admitted for the sessions 1989-90 and 1990-91 and they successfully completed the course in the said institutions. But in view of the decision of the Government in annexure-4, permitting only students who were admitted prior to 1989 and completed the course till 1988-89 were permitted to appear in the examination.

Mr. Swain, learned counsel for the petitioner submits that since the petitioner has permitted students, who prosecuted their studies for the year 1988-89, a similar decision should have been taken for the students, who have prosecuted their studies thereafter in the institutions which are members of the petitioner-association. He further submits that in the case of one of such institutions which is also a member of the petitioner, this Court in O.J.C. No.17574 of 1998 while disposing of the writ petition directed the Director, Secondary Education to verify the records of the petitioner-institution regarding its eligibility for its students to appear in the ensuing C.T. Examination in accordance with law and if they are found eligible and qualified, such students shall be allowed to sit in the ensuing C.T. Examination subject to permission, if any, by the Board/University. Pursuant to the said order in respect of the petitioner-institution therein, a verification was also made as is shown in Annexure-5.

Learned counsel for the School and Mass Education Department, however, submits that there was mushrooming of such training schools in the State, for which the decision under Annecxure-4 was taken by the Government

[O. H. C.–98]

Sl. No. of Order	Date of Order	ORDER WITH SIGNATURE	Office note as to action (if any), taken on Order

to discourage such growth of schools which function without prior approval of the Government.

Be that as it may, considering the case of the petitioner that students in many of the institutions, which are members of the petitioner-association have prosecuted their studies for the year 1989-90 and 1990-91, I am of the view that in the interest of justice, the opposite parties should be directed to examine as to whether the institutions which are members of the petitioner-association had the infrastructure facilities for imparting such course and as to whether, as a matter of fact, students completed their course in those schools. If on inquiry findings are in the affirmative, the Government may consider allowing such students to appear in future examination in the C.T ** course. While considering thus, the Government should also take into account as to whether any prior approval or affiliation was necessary of any University or Board for imparting such course.

The writ petition is according disposed of.

Urgent certified copy of this order be granted on proper application.

** Corrected vide Order dtd. 12.12.08.

Sd-M.M.Das, J.

M.M. Das, J

** 2009

Sd-M.M.Das, J

M.M. Das, J.

[O. H. [illegible]8]

Sl. No. of Order	Date of Order	ORDER WITH SIGNATURE	Office note as to action (if any), taken on Order
	3.	12.12.2008	

Misc. Case No. 14361 of 2008

Heard learned counsel for the petitioner.

This is an application for modification/ correction of the order dated 24.9.2008, by which the writ petition was disposed of.

It is submitted by the learned counsel for the petitioner that inadvertently in paragraph-5 of the order dated 24.09.2008, instead of mentioning "C.T. Course-2009", it has been wrongly mentioned as "C.T. Course".

I find the submission of the learned counsel for the petitioner to be correct. The order dated 24.09.2008 be corrected accordingly.

The misc. case is disposed of.

Certified copy, if granted, may be resubmitted for necessary correction by the Copying Department.

Urgent certified copy of this order be granted on proper application.

M. M. Das, J.

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M. M. Das, J.

Orissa High Court

Date of Application:- 11.
Date of Notification:- 11.
Date of Supply:- 12
Date of Ready:- 12
Date of Delivery:- 12.11.25

11.25

G.A. No-90416 /25

MEMO OF COSTS

		Rs.	P.
Application Fee.....		7	00
Searching Fee.....		5	00
Folios / No. Pages....5....	x 2	10	00
Hologram Fees.....5....	x 1	5	00
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Assistant Registrar (Estt.)
HIGH COURT OF ORISSA
Authorised Under Section-75,
Bharatiya Sakshya Adhiniyam-2023